

**EXPORT-IMPORT BANK ON BEHALF OF  
OFFICE OF THE BOARD OF DIRECTORS TO PROVIDE RECOVERY**

**PERFORMANCE WORK STATEMENT (PWS)**

**March 12, 2025**

**1.0 INTRODUCTION**

EXIM Bank seeks to contract for loan recovery assistance from a recovery firm principally collecting balances of certain paid claims under its credit guarantee and insurance programs.

The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform loan recovery services as stated **“standard recovery contract with the Dr. Amadeo Julian Abogados Consultores law firm, for the following case in the Dominican Republic: Effie Business Corop. (1025925) for a total buyer debt of [REDACTED]”** as defined in this Performance Work Statement except for those items specified as Government furnished property and services.

**2.0 BACKGROUND**

(a) The Export-Import Bank of the United States (“EXIM Bank”) supports the financing of U.S. goods and services. It assumes credit and country risks the private sector is unable or unwilling to accept. In covering these risks EXIM Bank pays on claims related to insurance policies and guarantees. Upon payment of the claim it becomes the responsibility of the Asset Recovery Group (“ARG”) within the Asset Management Division of EXIM Bank (“AMD”) to seek repayment from the debtor and/or guarantors.

(b) Throughout this document the term “recovery officer(s)” will be used. For the purposes of this document, recovery officer(s) refers to the International Recovery Officers, Working Capital Officers, and Managing Director – Recoveries; within ARG.

**3.0 SCOPE**

The contractor shall provide collection services and servicing of defaulted loans which may include borrower negotiations, restructuring, and workout agreements. The Contractor shall provide the following but not limited to provide loan recovery services, institute legal proceedings, provide credit restructuring services and take such other actions required to effect recovery for EXIM Bank.

**4.0 OBJECTIVES (NATURE OF WORK)**

To recover assets, institute legal proceedings and/or provide credit restructuring related to the claim(s), involving the debtor and guarantor(s).

Desired Outcome: Recovery of outstanding debt, [REDACTED]

## **5.0 APPLICABLE DIRECTIVES**

Full knowledge of the **Dominican Republic** judicial system, duly qualified / registered attorney in the **Dominican Republic**, if litigation is pursued.

## **6.0 GOVERNMENT FURNISHED INFORMATION OR PROPERTY**

EXIM Bank will notify contractor by email from the COR as to the specifics of case to be recovered.

## **7.0 SPECIFIC REQUIREMENTS/TASKS**

The firm is to attempt recovery on behalf of and, if provided EXIM Bank's express instruction to do so, institute legal proceedings and/or provide credit restructuring services to EXIM Bank's Asset Management Division ("AMD") related to the referenced claim(s), involving the referenced debtor and guarantor(s), located in the **Dominican Republic**.

The firm shall take such other action as AMD may require to effect recovery for EXIM Bank. The firm is instructed to: (i) perform a preliminary research and evaluation of the case, including, but not limited to, asset search, credit analysis and legal actions registered against the Obligor; (ii) attempt extrajudicial collection of the claim amount within 90 days of the date hereof and report the results of such attempt to AMD in acceptable format; and (iii) under written instructions received from AMD, file legal proceedings against the Debtor and the Guarantors if the firm is unable to effect an extrajudicial collection of all amounts due under the claim.

### **Task 1:**

The Contractor shall provide all labor, equipment, materials, postage, supervision, expenses, and travel necessary to conduct collection investigation services for EXIM Bank on the above stated case(s). Before beginning the recovery and collection services, the Contractor shall prepare and forward a written report to the Requesting Officer, outlining the plan for recovery and estimated amount of the defaulted principal that is collectable. Legal services shall be in accordance with the Statement of Work.

Contractor's written report shall be submitted in the suggested format and shall be presented within 60 days of execution of Contract.

### **Task 2: Filing Fee(s)**

This Line Item will be activated by means of a modification only from EXIM Bank's contracting office. The Contractor will forward a written report to EXIM Bank's Requesting Officer, which will outline the costs and risks associated with the anticipated filing fee(s).

### **Task 3: Payment for Recovery of Defaulted Principal**

The Contractor will forward a written report to EXIM Bank's Requesting Officer, which will outline payment and/or payment methods associated with the recovery of the Defaulted

Principal Amount. The Contractor will be paid a percentage of all monies collected in accordance with the Case Assignment Letter and in accordance with the Contractor's written report as required by Line Item 0001.

Additional information:

If litigation is required, Contractor shall submit a completed Litigation Request Form in English to AMD for internal approval and authority to proceed. Extraordinary and unusual expenses incurred by Contractor that are outside of the scope of this contract shall be agreed upon in writing in advance or shall not be considered reimbursable expenses.

## 8.0 DELIVERABLES

Lists any reports or documentation that is required as a deliverable to include the frequency, # of copies, and format. A deliverable is anything that can be physically delivered but may include non-physical things such as meeting minutes. Note: All PWS deliverables should be included in this table. Contractor should include in their proposed schedule a time for the Government to review.

| Item #                                                        | Deliverable                                | Section      | Format/<br>Quantities | Due Date                                                                            |
|---------------------------------------------------------------|--------------------------------------------|--------------|-----------------------|-------------------------------------------------------------------------------------|
| Meet every semester with recovery officer and EXIM Bank's OGC | Report on litigation proceedings / outcome | Task 1, 2, 3 | Twice a year          | Meetings can happen face-to-face in any location, via virtual media, telephonically |

## 9.0 PERFORMANCE REQUIREMENT SUMMARY (PRS)

The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

| Task or Deliverable | Performance Standard                                                                          | Acceptable Quality Level (AQL) | Surveillance Method                                          | Performance Rating                                                                                                 | Incentives/ Disincentives                               |
|---------------------|-----------------------------------------------------------------------------------------------|--------------------------------|--------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|
| <b>Litigation</b>   | Performance rating will be based upon the ability of the Contractor to respond to the request | 99%                            | Surveillance by EXIM Bank COR will be performed on a monthly | Exceptional (greater than 99.8%)<br><br>Very Good (between 99.8% and 96%);<br>Satisfactory (between 95.9% and 92%) | Contingency fee of [REDACTED] on actual cash recoveries |

|                                    |                                                                                                                                         |                                                                                                 |                                    |                                                                        |                                                                              |
|------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|------------------------------------|------------------------------------------------------------------------|------------------------------------------------------------------------------|
|                                    | and timeliness of the response.                                                                                                         |                                                                                                 |                                    | Marginal (between 91.9% and 90%<br><br>Unsatisfactory (less than 90%). |                                                                              |
| <b>Schedule</b>                    | Every 6 months                                                                                                                          | All deliverables as described in the PWS and specified                                          | 100% Inspection                    | Exceptional<br>Very Good<br>Satisfactory Marginal<br>Unsatisfactory    | Ongoing as per Contract                                                      |
| <b>Cost Control</b>                | Within Line 2 (legal costs) and Line 3 (actual cash recoveries)                                                                         | All deliverables as described in the PWS and specified in the approved Schedule of Deliverables | 100% Inspection                    | Exceptional<br>Very Good<br>Satisfactory Marginal<br>Unsatisfactory    | As stated in Contract – contingency fee [REDACTED] on actual cash recoveries |
| <b>Business Relations</b>          | Professional and respectful of all parties                                                                                              | Regular and ad-hoc meetings between contractor and Government                                   | Semi-Annual Performance Evaluation | Exceptional<br>Very Good<br>Satisfactory Marginal<br>Unsatisfactory    | Ongoing                                                                      |
| <b>Management of Key Personnel</b> | Appropriate credentials for the work involved. Registration within the <b>Dominican Republic</b> judicial system to perform legal work. | Regular and ad-hoc meetings between contractor and Government as needed                         | Semi-Annual Performance Evaluation | Exceptional<br>Very Good<br>Satisfactory Marginal<br>Unsatisfactory    | Ongoing                                                                      |